Application No. 16077/90
by Toulla METAXA
against Turkey

The European Commission of Human Rights sitting in private on 9 March 1998, the following members being present:

MM S. TRECHSEL, President
J.-C. GEUS
M.P. PELLONPÄÄ
E. BUSUTTIL
G. JÖRUNDSSON
A.S. GÖZÜBÜYÜK
A. WEITZEL
J.-C. SOYER
H. DANELIUS
Mrs G.H. THUNE
Mr F. MARTINEZ
Mrs J. LIDDY
MM L. LOUCAIDES
M.A. NOWICKI
I. CABRAL BARRETO
B. CONFORTI
N. BRATZA
I. BÉKÉS
J. MUCHA
D. SVÁBY
G. RESS
A. PERENIC
C. BÎRSAN
E. BIELIUNAS
E.A. ALKEMA
M. VILA AMIGÓ
Mrs M. HION
MM R. NICOLINI
A. ARABADJIEV

Mr M. de SALVIA, Secretary to the Commission

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 12 January 1990 by Toulla METAXA against Turkey and registered on 26 January 1998 under file No. 16077/90;

Having regard to :

- the reports provided for in Rule 47 of the Rules of Procedure of the Commission;

- the observations submitted by the respondent Government on 30 November 1994 and the letters from the applicant's lawyer dated 3 January 1998 and 13 February 1998;

Having deliberated;

Decides as follows:

THE FACTS

The applicant is a Cypriot citizen, born in 1937. She resides in Nicosia. In the proceedings before the Commission she is represented by Mr. Lefkos Clerides.

The facts of the case, as they have been submitted by the applicant, may be summarised as follows:

On 19 July 1989 the applicant took part in an anti-Turkish demonstration in Cyprus. She was arrested and allegedly beaten by Turkish soldiers. She was detained allegedly in inhuman conditions in the northern part of Cyprus. While in detention she was allegedly ill-treated and refused medical assistance. On 22 July 1989 she appeared before a "court" in the northern part of Cyprus to be tried on charges of having "illegally" entered that part. She was found guilty and sentenced to three days imprisonment and a fine. She was released on 25 July 1989.

The applicant claims to own property in the northern part of Cyprus, which she has not identified.

COMPLAINTS

The applicant complains under Articles 3 of the Convention that she was subjected to inhuman and degrading treatment. She also complains under Article 5 of the Convention of her detention and under Article 7 of her conviction. Moreover, she complains under Articles 9, 10 and 11 of the Convention that her rights to freedom of thought, conscience, expression and assembly were violated. Furthermore, she complains that she did not have an effective remedy under Article 13 of the Convention. Finally, she complains that she cannot enjoy her property in the northern part of Cyprus, contrary to Article 1 of Protocol No. 1.

PROCEEDINGS BEFORE THE COMMISSION

The application was introduced on 12 January 1990 and registered on 26 January 1990.

On 16 October 1991 the Commission decided to adjourn the examination of the application.

On 29 November 1993 the Commission decided to communicate the application to the respondent Government without asking for observations. It also decided to request the Committee of Ministers to allow it to communicate its Article 31 report in the case of Chrysostomos and Papachrysostomou v. Turkey, 8.7.93, D.R. 86, p. 4, to the applicant on a strictly confidential basis.

On 3 February 1994 the Ministers' Deputies acceded to the Commission's request.

On 5 March 1994 the Commission decided to request the Government to submit observations on the admissibility and merits of the application.

The Government's written observations were submitted on 30 November 1994. The Government submitted that the Commission should either declare the application inadmissible or adjourn its examination pending delivery of the Court's judgment in the case of Loizidou v. Turkey.

On 7 March 1995 the applicant requested the Commission to grant her an extension until 30 April 1995 for the submission of her observations in reply. The President of the Commission acceded to her request. On 19 April 1995 the applicant requested a further extension until after the delivery of the judgment of the Court on the merits of the case of Loizidou v. Turkey. On 20 May 1995 the Commission decided to accede to her request.

On 23 January 1997 the Commission decided to request the

Government to submit supplementary observations in the light of the Court's Loizidou v. Turkey judgment of 18 December 1996 (Eur Court HR, Reports 1996-VI, p. 2216).

On 2 April 1997 the Government requested the Commission to adjourn the proceedings until the Court had completed its consideration of the case of Loizidou v. Turkey.

On 18 April 1997 the Commission, having noted that the applicant had not identified the property she allegedly owned in the northern part of Cyprus, decided to request the applicant to provide further information concerning the property in question and, pending receipt of this information, to suspend the request for submission of supplementary observations by the Government.

On 3 January 1998 the applicant's representative informed the Commission that it appeared that the applicant had died and that he was trying to contact her relatives to confirm this and to obtain further instructions concerning the application. On 13 February 1998 he informed the Commission that he was unable to confirm the applicant's death and that, in any event, given his inability to re-establish contact with her, he could not continue acting on her behalf.

REASONS FOR THE DECISION

The Commission notes that, even assuming that the applicant is alive, she is no longer in contact with her representative who feels unable to pursue the case.

In these circumstances the Commission finds that the applicant no longer intends to pursue her application. Moreover, the Commission considers that respect for Human Rights as defined in the Convention does not require it to continue the examination of the application. It follows that the application may be struck off the list of cases pursuant to Article 30 para. 1 (a) of the Convention.

For these reasons, the Commission, unanimously,

DECIDES TO STRIKE THE APPLICATION OUT OF ITS LIST OF CASES.

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| M. de SALVIA | S. TRECHSEL |
| Secretary | President |
| to the Commission | of the Commission |